

Smt. Sarita Agnihotri v. State of U.P.

Allahabad High Court · Division Bench · 18 April 2019 · WRIT - C No. 13485 of 2019 · **Permanent disconnection permitted, subject to Supply Code 4.38.**

HEADNOTE

A consumer who has applied for permanent disconnection may have supply disconnected permanently, subject to compliance with clause 4.38 of the U.P. Electricity Supply Code, 2005. Writ disposed of; no costs.

FACTUAL SUMMARY

Smt. Sarita Agnihotri filed Writ-C No. 13485 of 2019 in the Allahabad High Court against the State of Uttar Pradesh and four others. Through counsel she stated that she required permanent disconnection of her electricity connection and that she had already applied for the same. Counsel for the respondents was heard. No dispute as to arrears, meter, or the fact of the application is recorded. The Division Bench disposed of the writ on 18 April 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection

HOLDING

Where the consumer has applied for permanent disconnection, the electricity connection may be disconnected permanently subject to complying with clause 4.38 of the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect A consumer who has applied for permanent disconnection may have supply disconnected permanently, subject to compliance with clause 4.38 of the U.P. Electricity Supply Code, 2005. Writ disposed of; no costs. ¶ 1